

VCU313564 LaRumbe-Torres, Josiah vs. Kaweah Health Medical Center et al

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-18

Motion: (1) Plaintiff's Motion re: Preferential Trial Setting; (2) Defendants Amergis and Dobbs' Motion to Continue Trial

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Re: LaRumbe-Torres, Josiah vs. Kaweah Health Medical Center et al

Case No.: VCU313564

Date: August 18, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: (1) Plaintiff's Motion re: Preferential Trial Setting; (2) Defendants Amergis and Dobbs' Motion to Continue Trial

Tentative Ruling: (1) To grant the motion and inquire as to discuss potential trial dates with counsel at the hearing not sooner than six months and not later than nine months pursuant to Code of Civil Procedure section 36(g); (2) The Court does not issue tentative rulings on these motions.

(1) Plaintiff's Motion re: Preferential Trial Setting

Facts

Plaintiff's complaint for medical malpractice initially named Defendant Kaweah, Dr. Barrera, Does 1 through 50 and ABC Companies 1-50. The allegations of the complaint center on the birth of Plaintiff on January 12, 2024 and the surrounding care including a cesarean section birth.

On April 25, 2025, Plaintiff substituted Doe 1 for Defendant Amergis.

Plaintiff, via a prior motion, sought to add nurse Jacqueline Dobbs as a Defendant, as she was employed by Defendant Amergis via the motion to amend the complaint. The Court, having granted that motion, notes that Dobbs has been added as a Defendant.

On July 23, 2026, Plaintiff filed this motion for trial preference pursuant to Code of Civil Procedure section 36(b).

It appears undisputed that Plaintiff is under the age of 14 and has a substantial interest in this matter.

Counsel for Plaintiff states “The Defendants in this matter have all been served with process and/or appeared through counsel.” (Declaration of Mungcal ¶6.)

Therefore, Plaintiff seeks, pursuant to section 36(f), a trial date 120 days from the date this motion is granted.

In opposition, Defendants argue that Plaintiff’s counsel’s statement as to service is insufficient and that this is a medical malpractice action governed by 36(g), requiring trial set between six and nine months from the date the motion is granted.

Authority and Analysis

Code of Civil Procedure section 36(b) specifically provides:

“A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole. A civil action subject to subdivision (a) shall be given preference over a case subject to this subdivision.” (Code Civ. Proc. § 36(b).)

As noted above, it appears undisputed that Plaintiff is under the age of 14 and has a substantial interest in this matter.

Under Code of Civil Procedure section 36(c), a motion for trial preference must be accompanied by a declaration that all essential parties have been served with process or have appeared. (Code Civ. Proc. § 36(c)(1).)

Here, Defendants argue that Plaintiff’s counsel’s statement as to service of essential parties is insufficient because Plaintiff has already amended the complaint twice to substitute Doe Defendants and other Doe Defendants remain in the operative amended complaint. In the Court’s view, however, this fact cuts against Defendants’ arguments. Plaintiff’s substitution of two Doe Defendants reinforces that, at this point in time, all essential parties have been served.

Trial preference under section 36(b) is mandatory. (Peters v. Superior Court (1989) 212 Cal.App.3d 218, 224:

“In contrast to the use of “shall” in section 36, subdivisions (a) and (b), the Legislature used the term “may” in subdivisions (d) and (e), in each latter reference linking the word “may” with the phrase “in its discretion.” Thus, the Legislature made unmistakably clear that motions for preference under subdivisions (d) and (e) were not mandatory. Equally clear, by the omission of the phrase “in its discretion” and by the use of “shall” instead of “may,” is that subdivisions (a) and (b) were intended to be mandatory.”

As such, the Court grants the motion.

However, the Court agrees the setting of trial is governed, in this professional negligence action, by subsection (g), as opposed to subsection (f). Therefore, the Court, at the hearing, will inquire as to available dates not sooner than six months and not later than nine months from hearing date.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.